

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 710

BY EDUCATION COMMITTEE

AN ACT

RELATING TO EDUCATION; AMENDING SECTION 33-512, IDAHO CODE, TO PROVIDE THAT INSTRUCTIONAL HOURS IN A SCHOOL DISTRICT'S ACADEMIC YEAR SHALL NOT BEGIN PRIOR TO THE TUESDAY FOLLOWING LABOR DAY; AMENDING SECTION 33-5206, IDAHO CODE, TO PROVIDE THAT INSTRUCTIONAL HOURS IN A PUBLIC CHARTER SCHOOL'S ACADEMIC YEAR SHALL NOT BEGIN PRIOR TO THE TUESDAY FOLLOWING LABOR DAY; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 33-512, Idaho Code, be, and the same is hereby amended to read as follows:

33-512. GOVERNANCE OF SCHOOLS. The board of trustees of each school district shall have the following powers and duties:

(1) To fix the days of the year and the hours of the day when schools shall be in session. However:

(a) Each school district shall annually adopt and implement a school calendar that provides its students at each grade level with the following minimum number of instructional hours:

Grades	Hours
9-12	990
4-8	900
1-3	810
K	450
Alternative schools (any grades)	900

(b) School assemblies, testing and other instructionally related activities involving students directly may be included in the required instructional hours.

(c) When approved by a local school board, annual instructional hour requirements stated in paragraph (a) of this subsection may be reduced as follows:

(i) Up to a total of twenty-two (22) hours to accommodate staff development activities conducted on such days as the local school board deems appropriate.

(ii) Up to a total of eleven (11) hours of emergency school closures due to adverse weather conditions and facility failures.

However, transportation to and from school, passing times between classes, recess and lunch periods shall not be included.

(d) Student and staff activities related to the opening and closing of the school year, grade reporting, program planning, staff meetings, and other classroom and building management activities shall not be counted

as instructional time or in the reductions provided in paragraph (c) (i) of this subsection.

(e) For multiple shift programs, this rule applies to each shift (i.e., each student must have access to the minimum annual required hours of instruction).

(f) The instructional time requirement for grade 12 students may be reduced by action of a local school board for an amount of time not to exceed eleven (11) hours of instructional time.

(g) The state superintendent of public instruction may grant an exemption from the provisions of this section for an individual building within a district, when the closure of that building, for unforeseen circumstances, does not affect the attendance of other buildings within the district.

(h) The state board of education may grant a waiver of the minimum number of instructional hours for a school district when districtwide school closures are necessary as a result of natural occurrences creating unsafe conditions for students. A county or state disaster declaration must have been issued for one (1) or more of the counties in which the school district is located. A waiver request to the state board of education must describe the efforts by the school district to make up lost instructional hours, the range of grades impacted, and the number of hours the school district is requesting be waived.

(i) The reduction of instructional hours allowed in paragraphs (f) through (h) of this subsection may not be combined in a single school year.

(j) Instructional hours shall not begin prior to the Tuesday following Labor Day in any academic year.

(2) To adopt and carry on and to provide for the financing of a total educational program for the district. Such programs in other than elementary school districts may include education programs for out-of-school youth and adults, and such districts may provide classes in kindergarten;

(3) To provide, or require pupils to be provided with, suitable textbooks and supplies and, for advice on textbook selections, may appoint a curricular materials adoption committee as provided in section 33-512A, Idaho Code;

(4) To protect the morals and health of the pupils;

(5) To exclude from school children not of school age;

(6) To prescribe rules for the disciplining of unruly or insubordinate pupils, including rules on student harassment, intimidation and bullying, such rules to be included in a district discipline code adopted by the board of trustees and a summarized version thereof to be provided in writing at the beginning of each school year to the teachers and students in the district in a manner consistent with the student's age, grade and level of academic achievement;

(7) To exclude from school pupils with contagious or infectious diseases who are diagnosed or suspected as having a contagious or infectious disease or those who are not immune and have been exposed to a contagious or infectious disease; and to close school if the board determines that conditions warrant such closure, based on consultation with the district health

1 department of the public health district in which the school district is lo-
2 cated;

3 (8) To equip and maintain a suitable library or libraries in the school
4 or schools and to exclude therefrom, and from the schools, all books, tracts,
5 papers, and catechisms of sectarian nature;

6 (9) To determine school holidays. Any listing of school holidays shall
7 include not less than the following: New Year's Day, Memorial Day, Indepen-
8 dence Day, Thanksgiving Day, and Christmas Day. Other days listed in section
9 73-108, Idaho Code, if the same shall fall on a school day, shall be observed
10 with appropriate ceremonies; and any days the state board of education may
11 designate, following the proclamation by the governor, shall be school holi-
12 days;

13 (10) To erect and maintain on each schoolhouse or school grounds a suit-
14 able flagstaff or flagpole and display thereon the flag of the United States
15 of America on all days, except during inclement weather, when the school is
16 in session; and for each Veterans Day, each school in session shall conduct
17 and observe an appropriate program of at least one (1) class period remember-
18 ing and honoring American veterans;

19 (11) To prohibit entrance to each schoolhouse or school grounds, to pro-
20 hibit loitering in schoolhouses or on school grounds and to provide for the
21 removal from each schoolhouse or school grounds of any individual or indi-
22 viduals who disrupt the educational processes or whose presence is detrimen-
23 tal to the morals, health, safety, academic learning or discipline of the
24 pupils. A person who disrupts the educational process or whose presence is
25 detrimental to the morals, health, safety, academic learning or discipline
26 of the pupils, or who loiters in schoolhouses or on school grounds, is guilty
27 of a misdemeanor;

28 (12) To supervise and regulate, including by contract with established
29 entities, those extracurricular activities that are by definition outside
30 of or in addition to the regular academic courses or curriculum of a public
31 school, and which extracurricular activities shall not be considered to be a
32 property, liberty or contract right of any student, and such extracurricular
33 activities shall not be deemed a necessary element of a public school educa-
34 tion but shall be considered to be a privilege. For the purposes of extracur-
35 ricular activities, any secondary school located in this state that is ac-
36 credited by an organization approved through a process defined by the state
37 department of education shall be able to fully participate in all extracur-
38 ricular activities described in and governed by the provisions of this sub-
39 section;

40 (13) To govern the school district in compliance with state law and
41 rules of the state board of education;

42 (14) To submit to the superintendent of public instruction not later
43 than July 1 of each year documentation that meets the reporting requirements
44 of the federal gun-free schools act of 1994 as contained within the federal
45 improving America's schools act of 1994;

46 (15) To require that all certificated and noncertificated employees
47 hired on or after July 1, 2008, and other individuals who are required by
48 the provisions of section 33-130, Idaho Code, to undergo a criminal history
49 check shall submit a completed ten (10) finger fingerprint card or scan to
50 the department of education no later than five (5) days following the first

day of employment or unsupervised contact with students in a K-12 setting, whichever is sooner. Such employees and other individuals shall pay the cost of the criminal history check. If the criminal history check shows that the employee has been convicted of a felony crime enumerated in section 33-1208, Idaho Code, it shall be grounds for immediate termination, dismissal or other personnel action of the district, except that it shall be the right of the school district to evaluate whether an individual convicted of one of these crimes and having been incarcerated for that crime shall be hired. Provided however, that any individual convicted of any felony offense listed in section 33-1208(2), Idaho Code, shall not be hired. For the purposes of criminal history checks, a substitute teacher is any individual who temporarily replaces a certificated classroom educator and is paid a substitute teacher wage for one (1) day or more during a school year. A substitute teacher who has undergone a criminal history check at the request of one (1) district in which he has been employed as a substitute shall not be required to undergo an additional criminal history check at the request of any other district in which he is employed as a substitute if the teacher has obtained a criminal history check within the previous five (5) years. If the district next employing the substitute still elects to require another criminal history check within the five (5) year period, that district shall pay the cost of the criminal history check or reimburse the substitute teacher for such cost. To remain on the statewide substitute teacher list maintained by the state department of education, the substitute teacher shall undergo a criminal history check every five (5) years;

(16) To develop and maintain a safe environment for students and employees by:

(a) Developing a system of background checks for all persons who have unsupervised contact with students in a kindergarten through grade 12 setting, which shall include but shall not be limited to a check of the Idaho sex offender central registry provided in chapter 83, title 18, Idaho Code;

(b) Requiring each school in the school district to create and maintain an emergency operations plan for each school that is approved by the board. The board shall ensure plans are developed in coordination with local school staff and local emergency response agencies and reviewed at least annually for updates and changes. Plans shall meet the guidelines adopted by the Idaho school safety and security advisory board; and

(c) Requiring all school district staff to receive initial and annual emergency operations training that provides instruction on how to conduct exercises in order to respond to emergencies according to the guidelines established by the Idaho school safety and security advisory board; and

(17) To provide support for teachers in their first two (2) years in the profession in the areas of: administrative and supervisory support, mentoring, peer assistance and professional development.

SECTION 2. That Section 33-5206, Idaho Code, be, and the same is hereby amended to read as follows:

1 33-5206. REQUIREMENTS FOR OPERATING A PUBLIC CHARTER SCHOOL. (1) A
2 public charter school shall be nonsectarian in its programs, affiliations,
3 admission policies, employment practices, and all other operations, shall
4 not charge tuition, levy taxes, or issue bonds, and shall not discriminate
5 against any student on any basis prohibited by the federal or state consti-
6 tution or any federal, state, or local law. Public charter schools shall
7 comply with the federal individuals with disabilities education act. Ad-
8 mission to a public charter school shall not be determined according to the
9 place of residence of the student or of the student's parent or guardian
10 within the district.

11 (2) No board of trustees of a public school district may require:

12 (a) Any employee of the school district to be involuntarily assigned to
13 work in a public charter school; or

14 (b) Any student enrolled in the school district to attend a public char-
15 ter school.

16 (3) Employment of charter school teachers and administrators shall be
17 on written contract.

18 (4) Administrators may be certified pursuant to the requirements set
19 forth in chapter 12, title 33, Idaho Code, pertaining to traditional public
20 schools or may hold a charter school administrator certificate, which re-
21 quires that the administrator:

22 (a) Holds a bachelor's degree from an accredited four (4) year institu-
23 tion;

24 (b) Submits to a criminal history check as described in section 33-130,
25 Idaho Code;

26 (c) Completes a course consisting of a minimum of three (3) semester
27 credits in the statewide framework for teacher evaluations, which shall
28 include a laboratory component;

29 (d) Submits a letter of support from a charter holder; and

30 (e) Has one (1) or more of the following:

31 (i) Four (4) or more years of experience administering a public
32 charter school;

33 (ii) A postbaccalaureate degree and a minimum of five (5) years
34 of experience in school administration, public administration,
35 business administration, or military administration;

36 (iii) Successful completion of a nationally recognized charter
37 school leaders fellowship; or

38 (iv) Four (4) or more years of teaching experience and a commit-
39 ment from an administrator at a charter school in academic, op-
40 erational, and financial good standing, according to its autho-
41 rizer's most recent review, to mentor the applicant for a minimum
42 of one (1) year.

43 (5) A charter school administrator certificate is valid for five (5)
44 years and renewable thereafter. Administrators shall be subject to over-
45 sight by the professional standards commission. Certificates may be revoked
46 pursuant to the provisions of section 33-1208, Idaho Code. Issuance of a
47 certificate to any applicant may be refused for such reason as would have
48 constituted grounds for revocation.

49 (6) Certified teachers in a public charter school shall be considered
50 public school teachers. Educational experience shall accrue for service in

1 a public charter school and be counted by any school district for any teacher
 2 who has been employed in a public charter school. The staff of the public
 3 charter school shall be considered a separate unit for the purposes of col-
 4 lective bargaining.

5 (7) Charter school teachers may be certified pursuant to the require-
 6 ments set forth in chapter 12, title 33, Idaho Code, pertaining to tradi-
 7 tional public school districts or may hold a charter school-specific teach-
 8 ing certificate.

9 (a) Criteria for a charter school-specific teaching certificate shall
 10 be in writing and require that teachers satisfy the provisions set forth
 11 in section 33-1202 1., 3., and 4., Idaho Code, and meet the following
 12 minimum educational or professional qualifications:

13 (i) Hold a bachelor's degree from an accredited institution; or

14 (ii) If instructing students in the fields of career technical
 15 education, satisfy the provisions of section 33-2205(6) (a), Idaho
 16 Code. Career technical education programs taught by teachers
 17 with a charter school-specific teaching certificate shall receive
 18 added-cost funding set forth in section 33-2215, Idaho Code, in an
 19 amount equal to programs taught by teachers with an occupational
 20 specialist teaching certificate.

21 (b) Teachers with a charter school-specific teaching certificate shall
 22 receive mentoring and professional development as approved by the char-
 23 ter holder.

24 (c) The state board of education shall issue charter school-specific
 25 teaching certificates to teachers upon recommendation of the individ-
 26 ual charter school, unless denied on the grounds set forth in section
 27 33-1208, Idaho Code.

28 (d) For teachers holding a charter school-specific teaching certifi-
 29 cate, a charter school may substitute its own ongoing education and pro-
 30 fessional development requirements in place of those set forth in rule
 31 by the state board of education if the same number of credit hours is
 32 required as that of teachers holding a standard instructional certifi-
 33 cate.

34 (8) Public charter schools may contract with educational services
 35 providers subject to the following provisions:

36 (a) Educational services providers shall be third-party entities sepa-
 37 rate from the public charter schools with which they contract and shall
 38 not be considered governmental entities, provided that such contracts
 39 may be evaluated by the authorizer;

40 (b) No more than one-third (1/3) of the public charter school's board
 41 membership may be comprised of nonprofit educational services provider
 42 representatives. Nonprofit educational services provider repre-
 43 sentatives may not be employees of the public charter school or the
 44 educational services provider and may not hold office as president or
 45 treasurer on the public charter school's board. For-profit educational
 46 services providers may not have representatives on the public charter
 47 school's board of directors;

48 (c) Charter holders shall annually disclose any existing and potential
 49 conflicts of interest, pecuniary or otherwise, with affiliated educa-
 50 tional services providers;

1 (d) Charter holders shall retain accountability for academic, fiscal,
2 and organizational operations and outcomes of the school and may not re-
3 linquish this responsibility to any other entity;

4 (e) Contracts must ensure that school boards retain the right to termi-
5 nate the contract for failure to meet defined performance standards af-
6 ter notice and a reasonable cure period has expired and if material de-
7 ficiencies have not been cured prior to that time period expiring;

8 (f) Contracts must ensure that assets purchased by educational ser-
9 vices providers on behalf of the school, using public funds, shall
10 remain assets of the school. The provisions of this paragraph shall
11 not prevent educational services providers from acquiring assets using
12 revenue acquired through management fees;

13 (g) Charter holders shall consult legal counsel independent of the
14 party with whom they are contracting for purposes of reviewing the
15 school's management contract and facility lease or purchase agreements
16 to ensure compliance with applicable state and federal law, including
17 requirements that state entities not enter into contracts that obligate
18 them beyond the terms of any appropriation of funds by the state legis-
19 lature;

20 (h) Charter holders must ensure that their facility contracts are sepa-
21 rate from management contracts; and

22 (i) A virtual school shall be deemed financially sufficient if there is
23 an agreement that requires an educational services provider to assume
24 the virtual school's financial risk when it does not have sufficient
25 residual funds to pay the educational services provider. Where this
26 paragraph is applicable, the educational services provider shall make
27 its audited financial statements available, unless the educational
28 services provider already makes such audited financial statements pub-
29 licly available for compliance with other federal or state laws.

30 (9) Admission procedures, including provision for over-enrollment,
31 shall provide that the initial admission procedures for a public charter
32 school will be determined by lottery or other random method, except as oth-
33 erwise provided in this section. A charter holder shall strive to ensure
34 that citizens in the primary attendance area are made aware of the enrollment
35 opportunities and deadline. The public notice must include the enrollment
36 deadline, the public charter school's total enrollment capacity for the next
37 school year, and an advisory that all prospective students will be given
38 the opportunity to enroll in the public charter school regardless of race,
39 color, national origin, ethnicity, religion, gender, socioeconomic status,
40 or special needs.

41 (a) If initial capacity is insufficient to enroll all pupils who submit
42 a timely application, then the admission procedures may provide that
43 preference shall be given in the following order: first, to children
44 of founders, provided that this admission preference shall be limited
45 to not more than ten percent (10%) of the capacity of the public charter
46 school; second, to siblings of pupils already selected by the lottery
47 or other random method; third, to pupils seeking to transfer from an-
48 other Idaho public charter school or authorizer at which they have been
49 enrolled for at least one (1) year, provided that this admission prefer-
50 ence shall be subject to an existing written agreement for such prefer-

1 ence between the subject charter schools or authorizer; fourth, to stu-
2 dents residing within the primary attendance area of the public charter
3 school; and fifth, by an equitable selection process such as a lottery
4 or other random method. A public charter school may weight the school's
5 lottery to preference admission for the following educationally dis-
6 advantaged students: students living at or below one hundred eighty-
7 five percent (185%) of the federal poverty level, students who are home-
8 less or in foster care, children with disabilities as defined in sec-
9 tion 33-2001, Idaho Code, students with limited English proficiency,
10 and students who are at-risk as defined in section 33-1001, Idaho Code.
11 A public charter school may include the children of full-time employees
12 of the public charter school within the first priority group, subject to
13 the limitations therein.

14 (b) If capacity is insufficient to enroll all pupils who submit a timely
15 application for subsequent school terms, then the admission procedures
16 may provide that preference shall be given in the following order:
17 first, to pupils returning to the public charter school in the second
18 or any subsequent year of its operation; and then as provided in para-
19 graph (a) of this subsection. The sibling preference in subsequent
20 school years applies to siblings of a returning pupil and of a pupil
21 selected by the lottery or other random method. A new lottery shall be
22 conducted each year to fill vacancies that become available. A public
23 charter school may weight the school's lottery to preference admission
24 as provided in this paragraph and paragraph (a) of this subsection and
25 for children who attended the public charter school within the previous
26 three (3) school years but withdrew as a result of the relocation of a
27 parent or guardian due to an academic sabbatical or an employer or mili-
28 tary transfer or reassignment.

29 (c) Each public charter school shall establish a process under which a
30 child may apply for enrollment or register for courses, regardless of
31 where such child resides at the time of application or registration, if
32 the child is a dependent of a member of the United States armed forces
33 who has received transfer orders to a location in Idaho and will, upon
34 such transfer, reside in an area served by the public charter school.
35 If capacity is insufficient as described in paragraph (a) or (b) of this
36 subsection, a child described in this paragraph shall be treated as a
37 student residing within the primary attendance area of the public char-
38 ter school for purposes of preference. Otherwise, such children shall
39 be included in the highest priority group for which they would otherwise
40 be eligible.

41 (d) Admission to a public charter school shall be determined by a selec-
42 tion process held within seven (7) days of the enrollment deadlines es-
43 tablished by the charter holder. The selection process must take place
44 in a public setting, the date and time of which must be noticed to the
45 public at least forty-eight (48) hours in advance.

46 (e) Within seven (7) days after conducting the selection process, the
47 charter holder shall send an offer to the legal guardian who submitted a
48 written request for admission on behalf of a student notifying such per-
49 son that the student has been selected for admission to the public char-
50 ter school. An offer must be signed by such student's parent or guardian

1 and returned to the public charter school by the date designated in such
2 offer letter. Remaining students shall be notified that they may be el-
3 igible for admission at a later date if a seat becomes available.

4 (f) If a school exceeds its projected student count in a lottery and
5 a sufficient wait list exists, the school may increase enrollment by
6 adding additional students per grade, not to exceed the total amount of
7 students authorized by the charter.

8 (10) Instructional hours for a public charter school shall not begin
9 prior to the Tuesday following Labor Day in any academic year.

10 SECTION 3. An emergency existing therefor, which emergency is hereby
11 declared to exist, this act shall be in full force and effect on and after
12 July 1, 2026.